TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1464]

[Oregon 04996]

OREGON

Correction

In F. R. Doc. 57-6636, appearing at page 6511 of the issue for Wednesday, August 14, 1957, the following change should be made:

That portion of the seventh line following the heading in the land description, now reading "Sec. 36, N½NW½," should read "Sec. 36, N½NW¼,".

[Public Land Order 1477]

[1825763]

UTAH

PARTIALLY REVOKING EXECUTIVE ORDERS NOS. 8579 OF OCTOBER 29, 1940 AND 8652 OF JANUARY 28, 1941, WHICH RESERVED LANDS FOR USE OF THE WAR DEPARTMENT AS AN AERIAL BOMBING AND GUNNERY RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Orders Nos. 8579 of October 29, 1940, and 8652 of January 28, 1941, which reserved the public lands within described areas in Utah for use of the War Department as an aerial bombing and gunnery range, are hereby revoked so far as they affect the following-described lands:

IN EXECUTIVE ORDER NO. 8579

SALT LAKE MERIDIAN

T. 1 N., Rgs. 12, 13, and 14 W., unsurveyed.
T. 1 S., Rgs. 12, 13, and 14 W., unsurveyed.
T. 1 S., R. 15 W.,
Secs. 19 to 36, inclusive.
T. 1 S., R. 16 W.,
Secs. 19 to 36, inclusive.
T. 1 S., R. 17 W.,
Secs. 19 to 36, inclusive.
T. 1½ S., R. 15 W.,
Secs. 31 to 36, inclusive.
T. 2 S., Rgs. 12 and 13 W., unsurveyed.
Secs. 1 to 18, inclusive.
T. 2 S., Rgs. 14, 15, 16, and 17 W.,
Secs. 1 to 18, inclusive.

The areas described aggregate 248,810.84 acres.

Excepting, however, a strip of land in T. 1 N., and 1 S., R. 12 W., containing approximately 275.48 acres, which will remain withdrawn in connection with its continued use by the Department of the Air Force as a low flight strip.

IN EXECUTIVE ORDER NO. 8652

SALT LAKE MERIDIAN

T. 1 N., R. 15 W.,
T. 1 S., R. 15 W.,
Secs. 1 to 18, inclusive.
T. 2 S., R. 18 W.,
Sec. 1, lots 1, 2, S½NE¼, SE¼, SE¼NW¼, NE¼SW¼, E½NW¼SW¼, and S½SW¼;
Sec. 11, E½NE¼NE¼, SE¼NE¼, E½SW¼ NE¼, E½NE¼SW¼, SE¼SW¼, E½ SW¼SW¼, and SE¼;
Secs. 12, 13, and 14;
Sec. 15, E½NE¼NE¼, SE¼NE¼, E½SW¼ NE¼, and S½.

The areas described aggregate 37,591.04 acres.

2. The following-described lands in the areas described in paragraph 1 of this order have been patented without a reservation of minerals to the United States:

SALT LAKE MERIDIAN

T. 2 S., R. 14 W.,
Sec. 21.
T. 1 S., R. 15 W.,
Sec. 26, W½;
Sec. 35, W½.
T. 2 S., R. 15 W.,
Sec. 2, lots 3, 4, S½NW¼, and SW¼;
Sec. 7, lots 7, 8, SE¼SW¼, and S½SE¼;
Sec. 8, S½S½;
Sec. 11, W½;
Sec. 14, W½;
Sec. 16, W½;
Sec. 17, E½.
T. 1 S., R. 16 W.,
Sec. 21.
T. 2 S., R. 16 W.,
Sec. 5, lots 1, 2, S½NE¼, and SE¼;
Sec. 8, E½;
Sec. 9, S½;
Sec. 10, S½;
Sec. 11, S½;
Sec. 12, S½;
Sec. 17, E½.
T. 1 S., R. 17 W.,
Sec. 19, lots 1, 2, 3, 4, NE¼NW¼, W½SE¼ NW¼, and W½NE¼SW¼;
Sec. 30, lot 1, W½ of lot 2, and W½ of lot 3.

The areas described aggregate 6,561.28 acres.

3. The following-described lands in the areas described in paragraph 1 of this order are state school lands:

SALT LAKE MERIDIAN

T. 1 N., R. 15 W.,
Sec. 16, S½NE¼, E½, and SE¼;
Secs. 32 and 36.
T. 2 S., R. 14 W.,
Secs. 2 and 16.
T. 1 S., R. 15 W.,
Secs. 2, 16, 32, and 36.
T. 1½ S., R. 15 W.,
Secs. 32 and 36.
T. 2 S., R. 15 W.,
Sec. 2, lots 1, 2, S½NE¼, and SE¼;
Sec. 16, E½.
T. 1 S., R. 16 W.,
Secs. 32 and 36.
T. 2 S., R. 16 W.,
Secs. 2 and 16.
T. 1 S., R. 17 W.,
Secs. 32 and 36.
T. 2 S., R. 17 W.,
Secs. 2 and 16.

The areas described aggregate 12,284.19 acres.

4. Sections 14, 15, 22, and 23, T. 1 S., R. 12 W., will remain within the withdrawal made by Executive Order No. 4872 of May 3, 1928, for use of the Department of Commerce as an air navigation site. The NE¼, sec. 18, T. 1 S., R. 14 W., is within Air Navigation Withdrawal No. 70, created by departmental order of October 20, 1931.

5. The remaining lands, aggregating approximately 263,036 acres, are located on the salt flats to the east of Wendover, Utah. They are barren of vegetation and have no value for grazing purposes. The released land is a portion of the Wendover Bombing and Gunnery Range.

6. No application for the opened lands may be allowed under the homestead, desert-land, small tract or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

7. Subject to any valid existing rights and the requirements of applicable law, the public lands released from withdrawal by this order, are hereby opened to filing of applications, selections, and locations in accordance with the following; the unsurveyed lands being opened to such applications, selections, and locations as are allowable on unsurveyed lands.

(a) Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications for surveyed lands under the Homestead, Desert Land, and Small Tract Laws and for unsurveyed lands under the Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284) as amended, presented prior to 10 a. m., on October 5, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on January 4, 1958, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs 7 (a) (1) and 7 (a) (2) above, and applications and offers under the Mineral Leasing Laws presented prior to 10:00 a. m., on January 4, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

(b) The opened lands will be open to applications and offers under the mineral-leasing laws, and to location under the United States mining laws beginning at 10:00 a. m., on January 4, 1958.

8. Persons claiming veterans preference rights under paragraph 7 (a) (2) above, must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming

preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning, the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

ROGER C. ERNST,
Assistant Secretary of the Interior.

AUGUST 30, 1957.

[F. R. Doc. 57-7294; Filed, Sept. 5, 1957; 8:47 a. m.]

TITLE 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

Subchapter C—Drugs

PART 146—GENERAL REGULATIONS FOR THE CERTIFICATION OF ANTIBIOTIC AND ANTIBIOTIC-CONTAINING DRUGS

ANIMAL FEEDS CONTAINING ANTIBIOTIC DRUGS

Under the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 507, 59 Stat. 463, as amended; sec. 701, 52 Stat. 1055, as amended; 21 U. S. C. 357, 371) and delegated to the Commissioner of Food and Drugs by the Secretary (22 F. R. 1045), the general regulations for the certification of antibiotic and antibiotic-containing drugs (21 CFR, 1956 Supp., 146.26; 22 F. R. 1932) are amended as follows:

1. Section 146.26 (b) (9) is amended by adding thereto the following sentence: "When intended for the uses specified in this subparagraph, it may also contain, in the amount specified, one, but only one, of the ingredients prescribed by paragraph (a) of this section."

2. Section 146.26 (b) (10) is amended by adding thereto the following sentence: "When intended for the uses specified in this subparagraph, it may also contain, in the amount specified, one, but only one, of the ingredients prescribed by paragraph (a) of this section."

3. Section 146.26 (b) (27) is amended to read as follows:

(27) It is intended for use as an aid in maintaining or increasing egg production, hatchability of eggs, prevention of early mortality of chicks when due to organisms that are sensitive to chlortetracycline, and for improving feed efficiency as related to egg production; its labeling bears adequate directions and warnings for such use; and it contains not less than 50 grams of chlortetracycline per ton of feed, except that if it is intended for use in the presence of disease outbreaks it shall contain not less than 100 grams of chlortetracycline per ton of feed.

4. Section 146.26 (b) is amended by adding thereto the following new subparagraphs:

(30) It is intended for use as an aid in the prevention of early mortality of chicks when due to organisms that are sensitive to streptomycin and penicillin; its labeling bears adequate directions and warnings for such use; and it contains, per ton of feed, not less than 75 grams of streptomycin and 15 grams of penicillin.

(31) It is intended for use in nursing sows to stimulate milk flow; it contains 100 milligrams of iodinated casein per pound; and its labeling bears information that it is to be administered as the complete ration for 3 days before farrowing and for the first week of lactation. It may also be intended for use in the prevention or treatment of bacterial swine enteritis if it contains the antibiotics in the amounts prescribed by this section for that disease.

Notice and public procedure are not necessary prerequisites to the promulgation of this order, and I so find, since it was drawn in collaboration with interested members of the affected industry, since it relaxes certain requirements, and since it would be against public interest to delay publication of these amendments.

I further find that animal feeds containing antibiotic drugs and conforming with the conditions prescribed in these amendments need not comply with the requirements of sections 502 (1) and 507 of the Federal Food, Drug, and Cosmetic Act in order to ensure their safety and efficacy.

Effective date. This order shall become effective upon publication in the FEDERAL REGISTER.

(Sec. 701, 52 Stat. 1055, as amended; 21 U. S. C. 371. Interpret or apply secs. 502, 507, 52 Stat. 1051, 59 Stat. 463, as amended; 21 U. S. C. 352, 357)

Dated: August 30, 1957.

[SEAL] JOHN L. HARVEY,
Deputy Commissioner of Food and Drugs.

[F. R. Doc. 57-7289; Filed, Sept. 5, 1957; 8:46 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter I—Office of the Secretary of Defense

Subchapter C—Military Personnel

PART 56—MEDICAL CARE FOR DEPENDENTS OF MEMBERS OF THE UNIFORMED SERVICES

HOSPITAL

The following amendment to § 56.5–3 (a) (1) of this Part 56 has been authorized by the Secretary of Defense and the Secretary of Health, Education, and Welfare:

(1) *Hospital.* The word "hospital" shall mean only an institution which is operated in accordance with the laws of the jurisdiction in which it is located pertaining to institutions identified as hospitals, is primarily engaged in providing diagnostic and therapeutic facilities for surgical and medical diagnosis, treatment and care of injured and sick persons by or under the supervision of staff physicians or surgeons, and continuously provides 24-hour nursing service by registered graduate nurses. It shall specifically exclude any institution which is primarily a place of rest, a place for the aged, a place for the treatment of drug addiction or alcoholism, a nursing home, a convalescent home, or a facility operated by the Federal Government or any agency thereof, except Freedmen's Hospital, Washington, D. C. If the experience of the Executive Agent indicates that the care provided in a hospital is substandard, or charges of a hospital are excessive, Government approval of its use in the future may be withdrawn and payment of charges by the Government denied for patients admitted subsequent to the withdrawal of approval unless the case is certified as an emergency by the attending physician or surgeon.

(Secs. 101–103, 201–204, 301–305, 70 Stat. 250–254; 37 U. S. C. 401–403, 411–414, 421–423, 404–405)

MAURICE W. ROCHE,
Administrative Secretary.

Approved: August 14, 1957.

FRANK B. BERRY,
Assistant Secretary of Defense (Health and Medical).

Approved: August 27, 1957.

EDWARD FOSS WILSON,
Acting Secretary of Health, Education, and Welfare.

[F. R. Doc. 57-7282; Filed, Sept. 5, 1957; 8:45 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

PART 110—DESTRUCTION OF RECORDS

SUBPART A—RAILROAD COMPANIES

At a session of the Interstate Commerce Commission, Division 2, held at its office in Washington, D. C., on the 21st day of August A. D. 1957.

The matter of regulations to govern the destruction of records of railroad companies being under consideration pursuant to provisions of section 20 (7) (b) of the Interstate Commerce Act, as amended; and,

It appearing, that a notice of proposed rule making was issued July 3, 1957 showing in detail revised regulations which were receiving consideration, such notice being published in the FEDERAL REGISTER issue of July 18, 1957 (22 F. R. 5713) pursuant to provisions of section 4 (a) of the Administrative Procedure Act; and after consideration of written views or comments received on or before August 15, 1957 as provided in such notice;

It is ordered, That the order entered April 20, 1945 which prescribed the Regulations to Govern the Destruction